

§ 353.2. Probation. 1. The court may order a period of probation if the court, having regard for the nature and circumstances of the crime and the history, character and condition of the respondent, is of the opinion that:

- (a) placement of respondent is not or may not be necessary;
- (b) the respondent is in need of guidance, training or other assistance which can be effectively administered through probation; and
- (c) such disposition is consistent with the provisions of subdivision two of section 352.2.

2. When ordering a period of probation or a conditional discharge pursuant to section 353.1, the court may, as a condition of such order, require that the respondent:

- (a) attend school regularly and obey all rules and regulations of the school;
- (b) obey all reasonable commands of the parent or other person legally responsible for the respondent's care;
- (c) abstain from visiting designated places or associating with named individuals;
- (d) avoid injurious or vicious activities;
- (e) co-operate with a mental health, social services or other appropriate community facility or agency to which the respondent is referred;
- (f) make restitution or perform services for the public good pursuant to section 353.6;
- (g) except when the respondent has been assigned to a facility in accordance with subdivision four of section five hundred four of the executive law, in cases wherein the record indicates that the consumption of alcohol by the respondent may have been a contributing factor, attend and complete an alcohol awareness program established pursuant to section 19.25 of the mental hygiene law; and
- (h) comply with such other reasonable conditions as the court shall determine to be necessary or appropriate to ameliorate the conduct which gave rise to the filing of the petition or to prevent placement with the commissioner of social services or the division for youth.

3. When ordering a period of probation, the court may, as a condition

of such order, further require that the respondent:

(a) meet with a probation officer when directed to do so by that officer and permit the officer to visit the respondent at home or elsewhere;

(b) permit the probation officer to obtain information from any person or agency from whom respondent is receiving or was directed to receive diagnosis, treatment or counseling;

(c) permit the probation officer to obtain information from the respondent's school;

(d) co-operate with the probation officer in seeking to obtain and in accepting employment, and supply records and reports of earnings to the officer when requested to do so;

(e) obtain permission from the probation officer for any absence from respondent's residence in excess of two weeks; and

(f) with the consent of the division for youth, spend a specified portion of the probation period, not exceeding one year, in a non-secure facility provided by the division for youth pursuant to article nineteen-G of the executive law.

4. A finding that the respondent committed an additional crime after probation supervision has been ordered and prior to expiration or termination of the period of such order constitutes a ground for revocation of such order irrespective of whether such fact is specified as a condition of such order.

5. The respondent must be given a written copy of the conditions at the time probation supervision is ordered. A copy of such conditions must be filed with and become part of the record of the case.

6. The maximum period of probation shall not exceed two years. If the court finds at the conclusion of the original period and after a hearing that exceptional circumstances require an additional year of probation, the court may continue the probation for an additional year.